

26STCV02595 26STCV02595

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-27

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Case Number: 26STCV02595 Hearing Date: August 27, 2026 Dept: 512

HEARING DATE: Thurs., August 27, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Nora

v. Western Fidelity Trustees, et al. COMP.

FILED: 01-26-26

CASE NUMBER: 26STCV02595

NOTICE:

NO

PROCEEDINGS: AMENDED MOTION TO BE RELIEVED AS
COUNSEL

MOVING PARTY: Counsel

Sarah Shapero for Plaintiff Linda Marie Nora

RESP. PARTY: None

MOTION TO BE RELIEVED AS COUNSEL

(CCP § 284, CRC, rule 3.162)

TENTATIVE RULING:

Counsel Sarah Shapero's Motion to be Relieved as Counsel for

Plaintiff Linda Marie Nora is CONTINUED to Monday, September 28, 2026 at 9:00

a.m. in the Stanley Mosk Courthouse.

At least 16 court days prior to the next scheduled hearing, Counsel is to file and serve supplemental papers addressing the deficiencies noted herein.

All documents and related forms must be refiled and served. Plaintiff's counsel must also submit a corrected MC-053 form: "Order Granting Attorney's Motion to Be Relieved" providing accurate dates including for the Amended Motion hearing, the Order to Show Cause Re: Failure to File Proof of Service and Sanctions for \$250, and the Case Management Conference.

Order to Show Cause re: Failure to File Proof of Service and Sanctions for \$250 and Case Management Conference is continued to September 28, 2026 at 9:00 a.m.

Plaintiff's Counsel is ordered to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct
Address (CCP §§ 1013, 1013a) OK

☐ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) NO

OPPOSITION: None
filed as of August 25, 2026 ☐ Late ☒
None

REPLY: None
filed as of August 25, 2026 ☐
Late ☒ None

ANALYSIS:

I.

Background

On January 26, 2026, Plaintiff Linda

Marie Nora ("Plaintiff") filed the instant action against Defendants Western Fidelity Trustees; Burim International, Inc.; and Edward Choi ("Defendants") and Does 1-50, alleging causes of action for Breach of Contract, Professional Negligence, Fraud, Declaratory Relief, Temporary Injunction, and Punitive Damages. (Compl., p. 1.)

On June 24, 2026, Counsel for

Plaintiff, Sarah Shapero ("Counsel") filed and served the instant Motion to be Relieved as Counsel for Plaintiff Linda Marie Nora (the "Motion").

On July 13,

2026, the Court continued the hearing on the Motion. (7/13/26 Order.)

On July 21,

2026, the Court continued the hearing on the Motion to allow Counsel an opportunity to file and serve supplemental papers addressing the service and notice of hearing issues discussed by the Court as well as a corrected MC-053 Form providing accurate dates. (7/21/26 Order.)

On July 27,

2026, Counsel filed an Amended Motion, Amended Declaration, Amended Proposed Order, and Proof of Service.

No Opposition

has been filed.

II.

Legal

Standard

Code

of Civil Procedure section 284 states that "the attorney in an action...may be changed at any time before or after judgment or final determination, as follows: (1) Upon the consent of both client and attorney...; (2) Upon the order of the court, upon the application of either client or attorney, after notice from one to the other." (Code Civ. Proc., § 284; Cal. Rules of Court, rule 3.1362.) "The determination whether to

grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court.” (Manfredi & Levine v. Superior Court (1998) 66 Cal.App.4th 1128, 1133); see Lempert v. Superior Court (2003) 112 Cal.App.4th 1161, 1173.)

An application

to be relieved as counsel must be made on Judicial Counsel Forms MC-051 (Notice of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (e).)

In addition,

California Rules of Court, rule 3.1362 subsection (d) requires that the notice of motion and motion, declaration, and proposed order be served on the client and all other parties who have appeared in the case by personal service, electronic service, or mail. If the notice is served by electronic service, it must be accompanied by a declaration stating that the electronic service address is the client’s current electronic service address. (Cal. Rules of Court, rule 3.1362, subd. (d)(2).) As used in this rule, “current” means:

“[T]he address

was confirmed within 30 days before the filing of the motion to be relieved.

Merely

demonstrating that the notice was sent to the client’s last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current.”

(Cal. Rules of Court, rule 3.1362, subd. (d).)

III.

Discussion

On June 24, 2026, Counsel moved the Court to be relieved as attorney of record for Plaintiff. (MC-051.) Counsel filed MC-051, MC-052, and MC-053 Forms. (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (e).)

On July 27,

2026, Counsel filed Amended MC-051, MC-052, and MC-053 Forms following the Court's ruling on 7/21/26. (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (e).)

Counsel seeks to be relieved on the following grounds: "There has been a breakdown of the relationship with client and a material term or terms of the underlying agreement between client and Shapero Law Firm, P.C. such that SLF cannot continue its representation." (Amended MC-052, ¶ 2.)

The Court is satisfied with Counsel's reasons for seeking to be relieved. (Cal. Rules of Professional Conduct, rule 1.16.)

Further, the Court finds service of the Amended Motion is now satisfactory.

However, the Court finds notice of hearing on the Amended Motion is defective. The Amended Motion is riddled with conflicting hearing dates for the instant Amended Motion – namely, the Amended MC-051 Form states the correct hearing date for the Amended Motion is 8/27/26 in the caption and ¶ 2 but then states the hearing date is 8/26/26 in the ¶ 3. (Amended MC-051 Form.) The Amended MC-052 Form states the correct hearing date for the Amended Motion in ¶ 4 but then states the hearing date is 8/12/26 in the caption. (Amended MC-052 Form.) The Amended MC-053 Form states the correct hearing date for the Amended Motion in the caption but then states the hearing date is 7/20/26 in ¶ 7.

The Court cannot find that this mix of correct and incorrect hearing dates included in the Amended Motion is sufficient notice of hearing on the Amended Motion. Further, the Court notes that Counsel did not file and serve separate notice of hearing on the Amended Motion.

Finally, the Court finds that, despite the Court's prior ruling, the Amended MC-053 Form includes inaccurate dates. The Amended MC-053 Form needs to be resubmitted with accurate dates.

Accordingly, Counsel's Motion is CONTINUED one last time to allow Counsel an opportunity to file and serve supplemental

papers addressing the deficiencies noted herein.

IV.

Conclusion & Order

Accordingly, Counsel Sarah

Shapero's Motion to be Relieved

as Counsel for Plaintiff Linda Marie Nora is CONTINUED to Monday, September 28, 2026 at 9:00 a.m. in the Stanley Mosk Courthouse.

At least 16 court days prior to the next scheduled hearing, Counsel is to file and serve supplemental papers addressing the deficiencies noted herein.

All documents and related forms must be refiled and served. Plaintiff's

counsel must also submit a corrected MC-053 form: "Order Granting Attorney's Motion to Be Relieved" providing accurate dates including for the Amended Motion hearing, the Order to Show Cause Re: Failure to File Proof of Service and Sanctions for \$250, and the Case Management Conference.

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